

Plaintiff has not alleged any viable claim based on an intentional tort. Code of Civil Procedure section 425.13 requires a plaintiff to obtain leave of court before asserting a claim for punitive damages in any action arising out of the professional negligence of a "health care provider." Without such an order, the punitive damages claim is subject to a motion to strike. (*United Western Medical Centers v. Superior Court* (1996) 42 Cal.App.4th 500, 504-505.)

"The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code." (Code Civ. Proc., § 425.13, subd. (a).)

4.

CASE #	CASE NAME	HEARING NAME
CVME2510655	ANCHELOWITZ VS INLAND PSYCHIATRIC MEDICAL GROUP, INC.	MOTIONS TO STRIKE

Tentative Ruling: GRANTED, see above.

5.

CASE #	CASE NAME	HEARING NAME
CVME2600179	HIGHTOWER VS AUSTIN	MOTION TO SET ASIDE DEFAULT

Tentative Ruling: GRANTED.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2105307	WALKER VS FCA US, LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: DENY as untimely; no good cause is shown.

Plaintiffs Nathan Walker and Christine Walker filed this Song-Beverly action on 6/22/21 regarding their purchase of a 2017 Chrysler Pacifica on 9/13/16 with defects related to its electrical system, transmission, engine, stalling, and collision warning system, among others. The operative Second Amended Complaint, filed 6/16/23, against Defendants FCA US LLC and Hemet Chrysler Dodge Jeep Ram, asserts: (1) Civil Code section 1793.2(d); (2) Civil Code section 1793.2(b); (3) Civil Code section 1793.2(a)(3); (4) express warranty; and (5) implied warranty. The parties exchanged only written discoveries; no deposition was taken and no discovery motion was filed. Defendant offered \$172,500 to settle before trial, which Plaintiffs accepted on 6/6/23.

On 6/13/24, the parties filed a joint stipulation to dismiss. The court entered dismissal on the same day.

Now, Plaintiffs move for \$49,830.52 in total compensation, consisting of: (1) \$32,351 in attorney fees; (2) a 1.35 multiplier enhancement of \$11,322.85; (3) \$2,656.67 in costs and expenses; and (4) an *anticipated* \$3,500 in connection with this fee motion's opposition and reply. They argue that the requested hours and rates are reasonable.

In opposition, Defendant argues that the motion is time-barred under *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644 and California Rules of Court, rule 3.1702, as Plaintiffs missed the 180-day deadline. Alternatively, Defendant argues that the requested fees are excessive and requests a reduction.

In reply, Plaintiffs argue that the motion is not untimely. Alternatively, they assert that good cause exists to excuse any delay. They maintain that their rates and hours are reasonable and that the multiplier is warranted for a two-year delay in receiving fees.

California Rules of Court, rule 3.1702(b)(1) states that:

"A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court... must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case..."

(Emphasis added.) Under rule 8.104(a)(1)(C), the time limit to file a notice of appeal is "180 days after entry of judgment."

In *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, 649 ("*Hatlevig*"), the Court of Appeal held that "[a] voluntary dismissal is 'effectively a 'judgment' within the meaning of the rule prescribing the time to appeal... Thus, the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock)." (*Hatlevig v. General Motors LLC, supra*, 118 Cal.App.5th at 649, internal citations omitted.)

Here, the court entered the voluntary dismissal with prejudice on 6/13/24. Under *Hatlevig* and rule 3.1702, Plaintiffs' 180-day deadline to file and serve their motion for attorneys' fees expired on 12/10/24. Plaintiffs did not file the motion until 4/22/26.

In reply, Plaintiffs made several arguments to escape this timeline. First, Plaintiffs argue that voluntary dismissals from section 998 settlements are ministerial acts and are not appealable, so rule 3.1702's deadline was never triggered. *Hatlevig* rejected this argument. Reading the *Hatlevig* case as a whole, the court concluded that a deadline must be enforced. (*Hatlevig v. General Motors LLC, supra*, 118 Cal.App.5th at 650.) Next, Plaintiffs argue that under *Meinhardt v. City of Sunnyvale* (2024) 16 Cal.5th 643 ("*Meinhardt*"), courts are prohibited "from construing non-judgment filings as judgments" to dismiss claims as untimely. However, the *Meinhardt* case discussed whether an administrative mandamus order is an appealable final judgment, and the court did not address voluntary dismissals. Lastly, Plaintiffs assert that the parties' stipulation to retain jurisdiction under CCP §664.6 would indefinitely extend the deadline. I disagree with this interpretation. Section 664.6 preserves the court's subject-matter jurisdiction to hear a motion. It would not toll the procedural timelines as set by the Rules of Court.

As to Plaintiffs' argument for good cause, California Rules of Court, rule 3.1702(d) permits the court to extend the time for filing a fee motion "for good cause." "[T]he essential ingredients of reasonable grounds and good faith are at the nucleus of the concept of good cause. This view of good cause contains an objective component (i.e., reasonable grounds) and a subjective component (i.e., good faith)." (*People v. Accredited Surety Casualty Co.* (2014) 230 Cal.App.4th 548, 559-560, internal citations omitted). Here, however, Plaintiffs' reply did not provide any compelling reason or objective obstacle that prevented them from filing the instant motion within the 180-day deadline after dismissal. As such, no good cause is shown.

No good cause is shown to excuse the delay.